

Patentability Funnel

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Novel · non-obvious · useful filter

PROFESSIONAL DEFINITION

The Patentability Funnel filters an invention through the core tests of patentability — novelty, non-obviousness (inventive step) and utility — to assess whether AI-related innovation can be patented.

WHO DEVELOPED IT

A representation of established patent-law doctrine, applied to AI by patent practitioners and offices such as the EPO and USPTO.

WHY IT WAS DEVELOPED

It was developed to help innovators assess, early and cheaply, whether an AI invention is likely to clear the bar for patent protection.

FIGURE 1 · PATENTABILITY FUNNEL

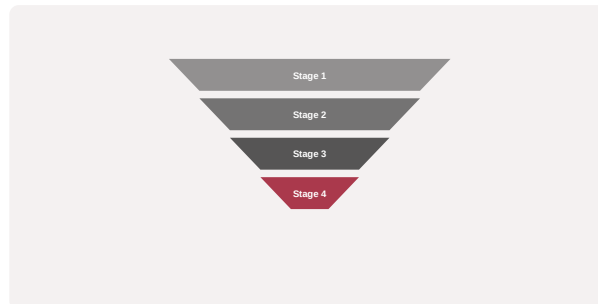


Figure 1. A schematic of the Patentability Funnel as applied in BARBM312 (illustrative).

HOW IT IS USED

The invention passes through each test; failure at any stage indicates an alternative protection (e.g. trade secret) may be preferable.

WHEN IT IS USED

When deciding whether and how to protect AI inventions.

BY WHOM IT IS USED

Patent attorneys, R&D and IP-strategy leaders.

INNOVATION RELATIVE TO THE PREDECESSOR TOOL

It frames patentability as a sequential filter, clarifying where AI inventions commonly fail (often obviousness or eligible subject matter).

RELATED FRAMEWORKS IN THIS COURSE

IP Quadrant · Slibrary 13

Authorship Decision Tree · Slibrary 13

Inventorship Test · Slibrary 13

Trademark Distinctiveness Spectrum · Slibrary 13

SOURCES (HARVARD REFERENCING STYLE)

European Patent Office (2021) Guidelines for Examination, Part G.

Abbott, R. (2020) The Reasonable Robot. Cambridge: CUP.